

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines
Administrative Law Judge**

In the Matter of:

CERTAIN WEARABLE DEVICES

Investigation No. 337-TA-1478

**RESPONDENTS OURARING INC. AND OURA HEALTH OY'S
MOTION TO STRIKE DEPOSITION TESTIMONY**

GROUND RULE 5.1 CERTIFICATION

Pursuant to Ground Rule 5.1, Oura states that it made reasonable, good-faith efforts to resolve the matter with Samsung prior to filing the Motion. Samsung has indicated that it opposes this motion and agrees that the parties are at an impasse.

Samsung failed to present any infringement evidence against the [REDACTED]
 [REDACTED] through timely-served infringement contentions and technical
 expert opinions. Samsung has now belatedly attempted to inject new infringement theories into
 the case through redirect deposition testimony of its technical experts. *See* Ex. A (Warren Dep.
 Tr.) at 35:14-15, 41:5-10, 135:7-9, 200:10-215:2; Ex. B (Welch Day 1 Dep. Tr.) at 186:15-18; Ex.
 C (Welch Day 2 Dep. Tr.) at 379:17-386:2. But such redirect testimony exceeds the scope of
 Oura's deposition questions, Drs. Warren's and Welch's respective expert reports, and Samsung's
 infringement contentions. *See generally*, Ex. D (Warren Inf. Rep.) at ¶¶ 68-69 [REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED] Ex. E (Welch Inf. Rep.) at ¶ 199 [REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED] Exs. I-M
 (Samsung's final infringement contentions, including claim charts).

Indeed, despite Oura's questions being explicitly tied to Oura Ring Gen. 4, both Drs.
 Warren and Welch improperly interjected [REDACTED] into their answers. Based on such
 nonresponsive answer, Samsung's counsel improperly elicited redirect testimony seeking to
 conjure new infringement theories for each of [REDACTED]. This is not the first time that
 Samsung has performed such gamesmanship, which should similarly be rejected here. *See Certain*

¹ The "Accused Product" is defined by Dr. Welch to be "the Oura Ring 4, including any colorways, finishes, and ceramic variants thereof, and its corresponding software applications, including the Oura App." *See* Ex. E at ¶ 3.

[REDACTED]

Mobile Electronic Devices, Inv. No. 337-TA-1432, Order No. 22 at 2 (Sept. 30, 2025) (EDIS Doc. ID 870244).

Accordingly, Oura respectfully requests that the testimony of Drs. Warren and Welch regarding [REDACTED] be struck from their respective deposition transcripts, and Samsung be precluded from offering such testimony from Drs. Warren and Welch at the evidentiary hearing.

I. FACTUAL BACKGROUND

As put forth in more detail in Oura's concurrently-filed motion for summary determination of noninfringement (EDIS Doc. ID 887851), Oura began producing discovery regarding [REDACTED] on January 26, 2026, only 10 days after this Investigation was instituted, and regarding [REDACTED] a month later on February 25, 2026. *See* Ex. F (January 26, 2026 Production Letter); Ex. G (February 25, 2026 Production Letter). On April 29, 2026, Oura's interrogatory responses identified the [REDACTED] as products for which Oura would seek a determination of noninfringement in this Investigation. *See* Ex. H (April 29 Interrogatory Responses) at 12-13, 79. By the end of fact discovery on May 29, 2026, substantial discovery regarding [REDACTED] had been provided, including over 200 technical specifications, CAD files, source code, printed circuit board stack up diagrams, builds of material, a product roadmap, component datasheets, testing documents, physical samples of [REDACTED] (both torn down and new), physical samples of the PCBs for both rings, and deposition testimony of Oura fact witnesses.² Samsung never sought any discovery on [REDACTED] that Oura did not provide during fact discovery.

² For sake of brevity, Oura is not attaching all the underlying documents that were produced by Oura related to [REDACTED], but references the concurrently-filed motion for summary determination of noninfringement (EDIS Doc. ID 887851).

[REDACTED]

Despite this discovery, Samsung set forth no infringement contentions regarding [REDACTED], and its technical experts, Drs. Warren and Welch, likewise set forth no infringement opinions regarding [REDACTED] (see Ex. D (Warren Inf. Rep.) at ¶¶ 68-69; Ex. E (Welch Inf. Rep.) at ¶ 199). The technical experts' lack of opinions on [REDACTED] was consistent with Samsung's infringement contentions, which also failed to include any allegations regarding [REDACTED] (or even any mention of these products). *See generally*, Exs. I-M (Samsung's final infringement contentions, including claim charts).

Based on the fact discovery that Oura provided, Oura's technical expert provided a rebuttal report showing reasons for noninfringement of [REDACTED]. *See* Ex. N (Mortazavi Reb. Rep.) at ¶¶ 129-32, 381-84, 551-54, 651-80.

At deposition, Oura did not ask any questions of Drs. Warren or Welch regarding [REDACTED]. Nevertheless, these experts attempted to insert testimony about [REDACTED] into questions having nothing to do with these products, and during redirect, Samsung led its experts through an analysis of [REDACTED]. *See* Ex. A (Warren Dep. Tr.) at 35:14-15, 41:5-10, 135:7-9, 200:10-215:2; Ex. B (Welch Day 1 Dep. Tr.) at 186:15-18; Ex. C (Welch Day 2 Dep. Tr.) at 379:17-386:2. Exemplary unprompted answers regarding [REDACTED] by Dr. Warren are as follows:

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Ex. A (Warren Dep. Tr.) at 34:13-35:19 (emphasis added).

[REDACTED]

Id. at 40:7-41:10 (emphasis added). And while Dr. Warren [REDACTED]
[REDACTED]
[REDACTED]. The same was true for Dr. Welch's
[REDACTED]:

[REDACTED]

³ Dr. Warren's justification for not opining about either [REDACTED] in his opening report also does not hold water given that he had access to all the internal technical documents and physical samples of both rings and stand-alone PCBs of both rings.

[REDACTED]

[REDACTED]

[REDACTED]

Ex. B (Welch Day 1 Dep. Tr.) at 186:8-187:5 (emphasis added).

On redirect, Samsung

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Ex. A (Warren Dep. Tr.) at 201:7-202:5; *see also id.* at 200:10-215:2 (redirect testimony concerning [REDACTED]).

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Ex. C (Welch Day 2 Dep. Tr.) at 384:25-385:17; *see also id.* at 379:17-386:2 (redirect testimony concerning [REDACTED]).

II. LEGAL STANDARD

At set forth by Ground Rule 13.6.6, “[a]n expert’s testimony at the hearing shall be within the scope of the expert’s report(s) and deposition testimony.” Order No. 2 at G.R. 13.6.6. Yet Ground Rule 13.6.6 is not an invitation to circumvent Ground Rule 9’s requirement that expert reports set forth “a complete statement of all opinions to be expressed by [each expert] and the basis and reasons for the opinions.” *Id.* at G.R. 9.

Indeed, “Ground Rule 11.5.3,⁴ which Samsung argues permits the opinion to go forward, is not intended to preserve wholly new theories of infringement, validity, or the like that could have been presented in the expert’s report.” *See Certain Mobile Electronic Devices*, Inv. No. 337-TA-1432, Order No. 22 at 2 (Sept. 30, 2025) (EDIS Doc. ID 870244); *see also Certain Wi-Fi Routers, Wi-Fi Devices, Mesh Wi-Fi Network Devices, and Hardware and Software Components Thereof*, Inv. No. 337-TA-1361, Order No. 42 at 6 (Jan. 16, 2024) (EDIS Doc. ID 812329) (precluding an expert’s testimony elicited during redirect questioning at deposition that was “not contained in his report and not the subject of his testimony in response to Netgear’s questions”); *Certain Light-Based Physiological Measurement Devices and Components Thereof*, Inv. No. 337-TA-1276, Order No. 35 at 7 (June 1, 2022) (EDIS Doc. ID 773129) (striking deposition testimony “because it was outside the scope of Apple’s questioning and is an improper attempt to supplement

⁴ Ground Rule 11.5.3 from Inv. No. 337-TA-1432 was materially the same as Ground Rule 13.6.6 in this Investigation. *See Certain Mobile Electronic Devices*, Inv. No. 337-TA-1432, Order No. 2 at 23 (“An expert’s testimony at the trial shall be limited in accordance with the scope of his or her expert report(s), deposition testimony, or within the discretion of the Administrative Law Judge.”).

[REDACTED]

Dr. Madisetti’s expert report”); *Certain Touch-Controlled Mobile Devices, Computers, & Components Thereof*, Inv. No. 337-TA-1162, Order No. 38 at 4 (Apr. 15, 2020) (EDIS Doc. ID 708709) (“these four questions and answers fall outside the scope of both Dr. Cockburn’s expert report and Neodron’s deposition examination, constitute an untimely supplementation of his expert opinion, and will not be permitted at the hearing”); *Certain Marine Air Conditioning Sys., Components Thereof, & Products Containing the Same*, Inv. No. 337-TA-1346, Order No. 26 at 2 (Sept. 11, 2023) (EDIS Doc. ID 804622) (“In general, arguments and evidence that exceed the scope of a party’s contentions are properly excluded from the hearing.”) (citing *Certain Mobile Phones & Tablet Computers, All With Switchable Connectivity*, Inv. No. 337-TA-1301, Order No. 33 (Nov. 2, 2022) (EDIS Doc. ID 784493)).

III. ARGUMENT

Redirect deposition testimony is not the proper avenue to disclose new infringement theories based on previously unaccused devices. Accordingly, Samsung’s attempt to inject new infringement theories for the [REDACTED] rings through only redirect deposition testimony should be rejected.

Samsung’s [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

But there is no mechanism in the rules for offering a new “rebuttal opinion” after the deadline for expert reports on a question for which a party bears the burden of proof;⁵ indeed, if there were, it would eviscerate the need for infringement contentions or for an expert’s entire opinions to be disclosed in his or her expert reports. Thus, these sorts of attempts have been repeatedly and consistently rejected. *See, e.g., Certain Mobile Electronic Devices*, Inv. No. 337-TA-1432, Order No. 22 at 2 (“Samsung acknowledges that its theory that the Moto Razr+ did not meet this limitation was first disclosed during Dr. Hu’s deposition, which is untimely”); *Certain Wi-Fi Routers*, Inv. No. 337-TA-1361, Order No. 42 at 6 (precluding an expert’s testimony elicited during redirect questioning at deposition that was “not contained in his report and not the subject of his testimony in response to Netgear’s questions”); *Certain Light-Based Physiological Measurement Devices*, Inv. No. 337-TA-1276, Order No. 35 at 7 (striking deposition testimony “because it was outside the scope of Apple’s questioning and is an improper attempt to supplement Dr. Madisetti’s expert report”); *Certain Touch-Controlled Mobile Devices*, Inv. No. 337-TA-1162, Order No. 38 at 4 (“these four questions and answers fall outside the scope of both Dr. Cockburn’s expert report and Neodron’s deposition examination, constitute an untimely supplementation of his expert opinion, and will not be permitted at the hearing”).

The prejudice to Oura is clear. From the start of the Investigation, Oura provided extensive discovery on both [REDACTED]. Oura also indicated in its Interrogatory responses in April 2026 that Oura was seeking adjudication for both rings. *See* Ex. H at 12-13, 79. Yet Samsung stayed silent in its contentions and accused only Oura Ring Gen. 4. *See* Exs. J-M. Samsung’s

⁵ Once a product has been put forth for adjudication, it is the complainant’s burden to prove infringement, even if not initially accused by the complainant. *See Certain Human Milk Oligosaccharides and Methods of Producing the Same*, Inv. No. 337-TA-1120, Comm’n Op. at 23 (June 8, 2020) (EDIS Doc. ID 712205).

technical experts similarly only addressed Oura Ring Gen. 4 in their infringement reports. *See* Exs. D and E. For depositions, Samsung offered both of their technical witnesses on July 9, 2026—the last day of expert discovery. Order 8 (Amended Procedural Schedule) (EDIS Doc. ID 881268). And on that last day (and the following day, given that Dr. Welch’s deposition lasted two days), Drs. Warren and Welch put forth entirely new infringement opinions on two alternative products on which they previously had no opinions on. Oura has been deprived of the opportunity to have its own expert consider these opinions, offer rebuttal expert opinions, and to cross-examine Samsung’s witnesses with some amount of preparation. Such a procedure undermines the entire structure of orderly exchange of positions and evidence, and amounts to expert discovery by ambush. In short, this deposition testimony is inappropriate and should be stricken.

IV. CONCLUSION

For the foregoing reasons, Oura respectfully requests that the deposition testimony of Dr. Warren at Ex. A at 35:14-15, 41:5-10, 135:7-9, 200:10-215:2 and by Dr. Welch at Ex. B at 186:15-18 and Ex. C at 379:17-386:2 be struck, and Samsung be precluded from relying on such statements at deposition to offer testimony from Drs. Welch and Warren at the evidentiary hearing.

Dated: July 13, 2026

Respectfully submitted,

s/ Jasjit S. Vidwan

Jasjit S. Vidwan

James A. Fussell, III

Saqib J. Siddiqui

Bryan C. Nese

Michael L. Lindinger

Tiffany A. Miller

Clark S. Bakewell

Alison T. Gelsleichter

Tariq Javed

Amanda E. Stephenson

Seth W. Bruneel

Courtney Krawice

Séké Godo

Angeline Premraj

Paul Choi

So Ra Ko

Jaspreet Momi

Jennifer Weinberg

MAYER BROWN LLP

1999 K Street, NW

Washington, DC 20006-1101

Tel.: +1 202.263.3000

Robert G. Pluta

Nicholas H. Ciulla

MAYER BROWN LLP

71 S. Wacker Drive

Chicago, IL 60606

Tel.: +1 312.782.0600

*Counsel for Respondents Ouraring Inc. and
Oura Health Oy*

Oura-ITC@mayerbrown.com

EXHIBIT A

REDACTED IN ITS ENTIRETY

EXHIBIT B

REDACTED IN ITS ENTIRETY

EXHIBIT C

REDACTED IN ITS ENTIRETY

EXHIBIT D

REDACTED IN ITS ENTIRETY

EXHIBIT E

REDACTED IN ITS ENTIRETY

EXHIBIT F



Mayer Brown LLP
1999 K Street, N.W.
Washington, D.C. 20006-1101

Main Tel +1 202 263 3000
Main Fax +1 202 263 3300
www.mayerbrown.com

Tiffany A. Miller
Direct Tel +1 202 263 3121
Direct Fax +1 202 263 3300
tmiller@mayerbrown.com

January 26, 2026

BY ELECTRONIC DELIVERY

D. Sean Trainor
O'MELVENY & MYERS LLP
OMM-SAMSUNG-OURA@OMM.COM

Stephen R. Smith
COOLEY LLP
Reebok_ITC_1468@cooley.com

David M. Maiorana
JONES DAY
ZeppHealthITC1468@jonesday.com

William C. Bergmann
Charles C. Carson
BAKER & HOSTETLER LLP
Nexxbase@bakerlaw.com

Re: In re *Certain Smart Wearable Devices, Systems, and Components Thereof*, ITC Inv. No.
337-TA-1468 – Oura Document Production

Dear Counsel:

At the following link, please find Complainant Ouraring, Inc.'s ("Ouraring") document production consisting of documents bearing bates numbers OURA1468_00000001 - OURA1468_00097540 (OURA1468_V001):

https://ftpus.consilio.com/public/file/hplrecbo1u6zexqasbhbjja/OURA1468_V001.zip

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January 26, 2026

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Please let us know if you have any issues accessing Ouraring's production.

Sincerely,

A handwritten signature in black ink, appearing to read 'T. Miller', enclosed within a rectangular box.

Tiffany A. Miller

cc: Counsel of Record

EXHIBIT G



Mayer Brown LLP
1999 K Street, N.W.
Washington, D.C. 20006-1101

Main Tel +1 202 263 3000
Main Fax +1 202 263 3300
www.mayerbrown.com

Tiffany A. Miller
Direct Tel +1 202 263 3121
Direct Fax +1 202 263 3300
tmiller@mayerbrown.com

February 25, 2026

BY ELECTRONIC DELIVERY

D. Sean Trainor
O'MELVENY & MYERS LLP
OMM-SAMSUNG-OURA@OMM.COM

Stephen R. Smith
COOLEY LLP
Reebok_ITC_1468@cooley.com

David M. Maiorana
JONES DAY
ZeppHealthITC1468@jonesday.com

Re: In re *Certain Smart Wearable Devices, Systems, and Components Thereof*, ITC Inv. No.
337-TA-1468 – Oura Document Production

Dear Counsel:

At the following link, please find Complainant Ouraring Inc.'s ("Oura") document production consisting of documents bearing bates numbers OURA1468_00218120 - OURA1468_00220363 (OURA1468_V005):

https://ftpus.consilio.com/public/folder/y8ivihkswea06iy6dszetq/OURA1468_V003%20-%20OURA1468_V005

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February 25, 2026

Page 2

Please let us know if you have any issues accessing Oura's productions.

Sincerely,

A handwritten signature in black ink, appearing to read 'Tiffany A. Miller', enclosed within a thin black rectangular border.

Tiffany A. Miller

cc: Counsel of Record

EXHIBIT H

REDACTED IN ITS ENTIRETY

EXHIBIT I

REDACTED IN ITS ENTIRETY

EXHIBIT J

REDACTED IN ITS ENTIRETY

EXHIBIT K

REDACTED IN ITS ENTIRETY

EXHIBIT L

REDACTED IN ITS ENTIRETY

EXHIBIT M

REDACTED IN ITS ENTIRETY

EXHIBIT N

REDACTED IN ITS ENTIRETY

Certain Wearable Devices

Inv. No.: 337-TA-1478

CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing **RESPONDENTS OURARING INC. AND OURA HEALTH OY'S MOTION TO STRIKE DEPOSITION TESTIMONY (PUBLIC VERSION)** was served upon the following as indicated below on July 20, 2026:

The Honorable Lisa R. Barton Secretary to the Commission U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W. Washington, DC 20436	Via EDIS
The Honorable Doris Johnson Hines Administrative Law Judge U.S. INTERNATIONAL TRADE COMMISSION 500 E Street, S.W., Room 317 Washington, DC 20436	Via email and Box: JohnsonHines1478@usitc.gov
Counsel for Complainants Samsung Electronics Co., Ltd and Samsung Electronics America, Inc. D. Sean Trainor O'MELVENY & MYERS LLP 1625 Eye Street, NW Washington, D.C. 20006-4061 Telephone: (202) 383-5300	Via email: OMM-SamsungOura@OMM.com

/s/ Jasjit S. Vidwan

Jasjit S. Vidwan

*Counsel for Respondents Ouraring Inc.
and Oura Health Oy*